

HOUSE No. 618

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick Joseph Kearney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to tuition-free universal full-day kindergarten.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/7/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/16/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>3/19/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>4/7/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>12/19/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>2/2/2026</i>

HOUSE No. 618

By Representative Kearney of Scituate, a petition (accompanied by bill, House, No. 618) of Patrick Joseph Kearney and Danillo A. Sena relative to tuition-free universal full-day kindergarten. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 514 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to tuition-free universal full-day kindergarten.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 29 of the General Laws is hereby amended by inserting after
2 section 2KKKKK, as inserted by section 1 of chapter 254 of the acts of 2020, the following
3 section:-

4 Section 2LLLLL. (a) There shall be a Universal Full-Day Kindergarten Trust Fund,
5 hereinafter called the fund, for the purposes of providing financial aid to school districts to
6 implement and maintain tuition-free universal full-day kindergarten programs, as defined in
7 section 4B of chapter 71. The fund shall be administered by the board of elementary and
8 secondary education.

(b) There shall be credited to the fund: (i) revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (ii) interest earned on such revenues; and (iii) funds from public and private sources, including, but not limited to, gifts, grants and donations. Amounts credit to the fund that are unexpended at the end of a fiscal year shall not revert to the General Fund.

(c) Amounts credited to the fund may be expended, without further appropriation, by the board of elementary and secondary education to assist cities and towns and regional school districts that do not offer a tuition-free universal full-day kindergarten as of January 1, 2021 in implementing and maintaining tuition-free universal full-day kindergarten programs.

(d) School committees of cities and towns and regional district school committees may request reimbursement from the fund for up to 100 per cent of the funds required to implement and maintain a tuition-free universal full-day kindergarten program.

(e) Annually, not later than October 1, the board of elementary and secondary education shall report to the clerks of the house of representatives and senate, the house and senate committees on ways and means and the joint committee on education on the fund's activity. The report shall include, but shall not be limited to: (i) the source and amount of funds received; (ii) the amounts distributed and recipients; and (iii) anticipated revenue and expenditure projections for the next year.

SECTION 2. Section 2 of chapter 70 of the General Laws is hereby amended by striking out the definition of "Foundation enrollment" in, as appearing in section 6 of chapter 132 of the acts of 2019, and inserting in place thereof the following definition:-

“Foundation enrollment”, in a fiscal year, the number of students on October 1 for whom the district is financially responsible, including students attending programs outside of the district for whom the district is required to pay tuition; provided, however, that each student shall be assigned to 1 of the following categories: (i) preschool; (ii) kindergarten; (iii) elementary school; (iv) junior high school or middle school; (v) high school; or (vi) vocational school.

SECTION 3. Chapter 71 of the General Laws is hereby amended by inserting after section 4A, as appearing in the 2018 Official Edition, the following section:-

Section 3B. (a) As used in this section the following terms shall, unless the context clearly requires otherwise, have the following meanings:

“Elementary school”, a school providing instruction to grades 1 through 5, 6, 7, or 8, and, where so designated by a school committee prior to the commencement of a school year, may also include a middle school or other intermediate level school providing instruction to grades 5 through 6 or any combination thereof.

“Tuition-free universal full-day kindergarten program”, a universally accessible, high-quality education program for kindergarten-aged children in the commonwealth offered without charge for tuition that operates for the full length of a school day for elementary schools established pursuant to section 1G of chapter 69.

(b) All school districts may offer a tuition-free universal full-day kindergarten program to each student that is subject to the same minimum requirements that the board establishes for length of a school day and number of days in a school year for elementary schools pursuant to section 1G of chapter 69. School districts shall not charge any fee for the tuition of a tuition-free universal full-day kindergarten program.

School districts may apply for reimbursement from the Universal Full-Day Kindergarten Trust Fund established in section 2LLLLL of chapter 29.

SECTION 4. Within 90 days of the effective date of this act, each school committee of a city or town or regional school district without a universal full-day kindergarten program shall report to the board of elementary and secondary education on the necessary funds required to implement tuition-free universal full-day kindergarten. Within 180 days of the effective date of this act, the board of elementary and secondary education shall report to the clerks of the house of representatives and the senate, the house and senate committees on ways and means and the joint committee on education on the necessary funds required to implement tuition-free universal full-day kindergarten.

SECTION 5. Section 4B of chapter 71 of the General Laws shall apply to each school year beginning after July 31, 2022